

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #14	CCRB Case #: 201706778	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 08/11/2017 12:10 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 2/11/2019	Precinct: 23
Date/Time CV Reported Fri, 08/11/2017 3:03 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/17/2017 12:53 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Sajit Tomy	7575	955585	HBM RT
2. POM Gabor Kolman	15117	956025	HBM RT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gabor Kolman	Force: Police Officer Gabor Kolman used physical force against § 87(2)(b)	A . Closed - Pending Litigation
B . POM Sajit Tomy	Force: Police Officer Sajit Tomy used physical force against § 87(2)(b)	B . Closed - Pending Litigation

Case Summary

On August 11, 2017, Captain Lapkeung Lee of PSA 3 called the IAB Command Center to report that § 87(2)(b) alleged that officers used excessive force while placing him under arrest, and that § 87(2)(b) was transported to § 87(2)(b) for his injuries. This case was received at the CCRB on August 17, 2017.

The IAB log did not note any contact information for § 87(2)(b). Between August 18, 2017 and August 25, 2017, searches of the following databases were conducted: the CCRB's Complaint Tracking System, NYC Office of Court Administration, the NYPD Booking and Arraignment Disposition System, LexisNexis, and CLEAR. All of these attempts failed to yield any potential phone numbers or email addresses, but did yield eight potential mailing addresses. On August 29, 2017, one letter was mailed to each potential mailing address.

On August 31, 2017, § 87(2)(b) called the CCRB and left a voicemail message providing his phone number and requesting a call back. That same day, § 87(2)(b) was called. He answered, provided his contact information and a brief phone statement, and scheduled an interview for September 5, 2017. However, § 87(2)(b) expressed an interest in speaking to his criminal defense attorney, § 87(2)(b) of the § 87(2)(b), prior to his scheduled appointment. On September 3, 2017, a text message was sent to § 87(2)(b) reminding him of his scheduled appointment. On September 5, 2017, § 87(2)(b) called the CCRB and said he had not yet spoken to § 87(2)(b). He rescheduled his CCRB interview for September 11, 2017.

On September 8, 2017, § 87(2)(b) called the CCRB. He asked the undersigned investigator to contact § 87(2)(b) and relay that § 87(2)(b) wanted to speak with him prior to his CCRB interview. That same day, § 87(2)(b) was called, and the message from § 87(2)(b) was given to him. § 87(2)(b) rescheduled his CCRB interview for September 13, 2017.

On September 12, 2017, § 87(2)(b) was called. He answered and said he had not spoken to § 87(2)(b) and did not want him to provide a sworn statement to the CCRB until he had. That same day, § 87(2)(b) was called. He answered and immediately said that all communication must go through § 87(2)(b). It was explained to § 87(2)(b) that without a sworn statement, his case may be closed without conducting a full investigation. The re-open process was also explained. § 87(2)(b) replied, "Speak to my lawyer." On September 13, 2017, § 87(2)(b) failed to appear for his scheduled interview.

On September 18, 2017, § 87(2)(b) was called. He answered and said he could not provide a definitive answer for whether § 87(2)(b) would be providing a sworn statement to the CCRB, but said he would speak with § 87(2)(b) and call the CCRB with their decision by September 22, 2017. It was explained to § 87(2)(b) that the CCRB's cases are time sensitive and that without a sworn statement from § 87(2)(b) his case would be closed. On October 4, 2017, § 87(2)(b) was called and informed that § 87(2)(b)'s case was being closed as pending litigation. He was provided with instructions for how § 87(2)(b) could request that his case be reopened in the future, should § 87(2)(b) wish to do so.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Given that [§ 87(2)(b)] and [§ 87(2)(b)] have refused to cooperate with this investigation due to [§ 87(2)(b)]'s pending criminal case, it is recommended that this case be **Closed—Pending Litigation**.

Squad: 14

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date